

STATE OF ILLINOIS, CIRCUIT COURT <u>Sangamon</u> COUNTY	MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS	<i>For Court Use Only</i>
Instructions ▼ Directly above, enter the name of the county where you will file the <i>Motion</i> . Enter your name, birth date, race, and gender. List any other names you used when arrested on the cases listed on this form. If the Circuit Clerk gave you a new case number, enter it to the right.	Request of: <u>Alexandria Catherine Montgomery-Washington</u> Your name (<i>First, middle, last name</i>) <u>Alexandria Catherine Washington-Montgomery</u> Other names used in these cases <u>12/31/1979</u> Date of birth <u>Black or African American</u> Race <u>Female</u> Gender	 <u>2024-CF-000001-99</u> Case Number (<i>if the Circuit Clerk assigns a new number</i>)
Enter the number for all eligible cannabis convictions on your criminal record in this county.	Case numbers of all eligible cannabis convictions on your record in this county: <u>2024-CF-000001-99</u> 	

Note: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.
Noticia: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

In 1 , you cannot ask to vacate and expunge a criminal conviction unless one of the special situations listed under checkboxes a or b describes your case.	1. All of the cases listed have resulted in convictions for: a. ☐ Misdemeanor cannabis offenses under 720 ILCS 550/4 or 720 ILCS 550/5 ; AND/OR b. ☐ Class 4 felony cannabis offense under 720 ILCS 550/4 or 720 ILCS 550/5 .
In 3 , you must have completed each sentence, such as probation, or satisfied all conditions imposed by the convictions listed above.	2. ☐ I was convicted before June 25, 2019. 3. ☐ I have completed the sentences or conditions imposed by the conviction in each of the cases listed.

See *How to Vacate and Expunge Eligible Cannabis Convictions* to make sure all of your cases are convictions that are eligible to be vacated and expunged. For help filling out this table, see pages 4 & 5 in *How to Vacate and Expunge Eligible Cannabis Convictions*.

DO NOT list any dismissed cases, satisfactorily completed supervisions or satisfactorily completed qualified probations in this section. DO NOT list any cases where you received convictions for non-Cannabis charges.

In 4, enter all eligible convictions on your record in this county. Enter all charges for each case number.

If you need more room for your arrests or cases, use the *Additional Cannabis Convictions* form, check the box and attach it.

4. ☒ I ask the court to **VACATE AND EXPUNGE** the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the arresting agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, on the dates and for the offenses listed below:

Case Number	Arresting Agency	Cannabis Conviction (check the type of Cannabis conviction)		Date of Arrest
2024-CF-000001-99	Springfield Police Department Records Division	Misdemeanor	☐	11/29/2023
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
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		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	

☐ I have listed additional cases on the attached *Additional Cannabis Convictions* form.

In 5, you must fill in the blanks in a-c. For 5b, list your age when you were last arrested for a case listed in Section 4. For 5c, count the number of years (or months if a year has not passed) since your last conviction for a case listed in Section 4.

In 6, explain to the Court why you want to vacate and expunge your cases. See page 5 of *How to Vacate & Expunge Eligible Cannabis Convictions* for more information on filling out this section.

5. a. I am currently _____ years old.
 b. I was _____ years old when I was last arrested for a case listed on this *Motion*.
 c. It has been at least _____ years or _____ months since my last conviction listed on this *Motion*.
6. I am seeking to vacate and expunge the convictions listed above because I have been or may be denied housing, educational, employment, or other opportunities because of the conviction(s) (please explain): _____

Under Illinois [Supreme Court Rule 137](#), your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number, and email address, if you have one.

/s/

Your Signature

Date

Prepared By:

Alexandria Catherine Montgomery-Washington

Print Name

1188 Martin Luther King Jr. Drive, Apartment 1407

Street Address

Springfield, IL 62703

City, State, ZIP

Attorney # (if any)

217-555-0199

Telephone

alexandria.montgomery.washington@example.org

Email

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

STATE OF ILLINOIS, CIRCUIT COURT		Sangamon COUNTY		ADDITIONAL CANNABIS CONVICTIONS		For Court Use Only	
Instructions ▼		Request of: Alexandria Catherine Montgomery-Washington Your name (First, middle, last name) Alexandria Catherine Washington-Montgomery Other names used in these cases 12/31/1979 Black or African American Female Date of birth Race Gender				2024-CF-000001-99 Case Number (if the Circuit Clerk assigns a new number)	
Directly above, enter the name of the county where you will file the Motion.							
Enter your name, birth date, race, and gender. List any other names you used when convicted on the cases listed on this form.							
If the Circuit Clerk gave you a new case number, enter it to the right.							
Enter the number for all eligible cannabis convictions on your criminal record in this county.		Case numbers of additional eligible cannabis convictions on your record in this county: 2024-CF-000001-99					

See How to Vacate and Expunge Eligible Cannabis Convictions to make sure all of your cases are convictions that are eligible to vacate and expunge. For help filling out this table, see page 4 in How to Vacate and Expunge Eligible Cannabis Convictions.

DO NOT list any dismissed cases, satisfactorily completed supervisions or satisfactorily completed qualified probations in this section. DO NOT list any cases where you received convictions for non-Cannabis charges.

In 4, enter all eligible convictions on your record in this county. Enter all convictions for each case number.

4. ☐ I ask the court to **VACATE AND DISMISS** the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, on the dates and for the offenses listed below:

Case Number	Arresting Agency	Cannabis Conviction (check the type of Cannabis conviction)		Date of Arrest
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
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		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	

Under Illinois [Supreme Court Rule 137](#), your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number, and email address, if you have one.

Prepared by: _____
Name

/s/ _____

Your Signature

Alexandria Catherine Montgomery-Washington

Print Your Name

217-555-0199

Telephone

1188 Martin Luther King Jr. Drive, Apartment 1407

Street Address

Springfield, IL 62703

City, State, ZIP

alexandria.montgomery.washington@example.org

Email

Attorney # (if any)

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

Getting Started

Motion to Vacate & Expunge Eligible Cannabis Convictions

IMPORTANT: This getting started guide and the instructions are not legal advice. They are only meant to help you learn how to file a *Motion to Vacate & Expunge Eligible Cannabis Convictions* form. Your use of the forms does not guarantee your Motion will be granted.

NOTE: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.

NOTICIA: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

To learn how to fill out the forms and file them with the court, read the *HOW TO FILE A MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS* instruction booklet and the instructions on the forms.

Name of forms:	• <i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> • <i>Notice of Motion to Vacate & Expunge Eligible Cannabis Convictions</i> • <i>Order to Vacate & Expunge Eligible Cannabis Convictions</i>
Purpose of the forms:	To get a court order vacating and expunging eligible cannabis conviction(s) under the Cannabis Regulation & Tax Act .
Types of cases the forms CAN be used for:	Misdemeanor and Class 4 felony convictions for Sections 4 and 5 of the Cannabis Control Act .
Types of cases the forms CANNOT be used for:	• Arrests or convictions for other non-cannabis offenses. • Arrests or other cases not leading to conviction for a cannabis offense. • Convictions for Class 3, Class 2, Class 1 or Class X Cannabis offenses. • Out of state and federal cannabis conviction records.
Cost to file the forms:	There may be a fee to file your <i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . If you cannot afford to pay the filing fee, you can ask the court to file for free or at a reduced cost by filing the <i>Application for Waiver of Court Fees</i> found at: illinoiscourts.gov/documents-and-forms/approved-forms .
Special information or papers needed to complete the forms:	• Dates of arrests and class of misdemeanor or felony charges; • Outcome of court cases: AND • Addresses of the county State's Attorney's office that filed charges against you.
Statutes covering the forms:	410 ILCS 705
Where to find the forms and instruction sheet:	illinoiscourts.gov/documents-and-forms/approved-forms
For more information:	Read the instruction booklet called <i>How to File a Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . You may also find more information, resources, and the location of your local legal self-help center at illinoislegalaid.org/get-legal-help/lshc-directory or the Office of the State Appellate Defender at Illinois.gov/osad/Expungement .

Find Illinois Supreme Court approved forms at: illinoiscourts.gov/documents-and-forms/approved-forms.

In **2**, enter the State's Attorney office that prosecuted your cases. This contact information is publicly available online or from your county Circuit Clerk at: illinoiscourts.gov/court/s/circuit-court/circuit-court-clerks/.

In **3**, enter the name of the county where you are filing your *Motion*.

In 4, check the box if you have or are getting a fee waiver.

2. To: County State's Attorney

County Name

Street Address

City

State

ZIP

3. I have filed a *Motion to Vacate & Expunge Eligible Cannabis Convictions* with the Circuit Clerk of _____ County, Illinois.

County Name

4. ☐ I am seeking a fee waiver under Supreme Court Rule 298, or have attached an *Order* waiving my filing and State Police fees.

5. The Circuit Clerk will mail a copy of this *Notice* and the *Motion* to the county State's Attorney listed.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

/s/

Your Signature

Date

Prepared by: Alexandria Catherine Montgomery-Washington

Street Address: 1188 Martin Luther King Jr. Drive, Apartment 1407

City, State, ZIP: Springfield, IL 62703

Phone Number: 217-555-0199

Attorney # (if any):

CERTIFICATE OF MAILING

DO NOT fill out this section. The Circuit Clerk will sign and mail it.

The undersigned certifies that the above *Notice* and attached documents were placed in the U.S. mail with first class postage prepaid to the State's Attorney listed above.

Signature of Circuit Clerk

Name of Deputy Clerk

[illegible]

DO NOT fill in these lines. The judge will fill out and check the correct boxes.

IT IS ORDERED:

- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is GRANTED for all cases listed on this order (If there are more cases, they are listed on a separate order); **OR**
- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is GRANTED for these cases:

The finding of guilty, sentence, and judgment of conviction for the granted cases are vacated. Further proceedings are hereby dismissed. The expungement is granted for the above cases, and within 60 days of this order:

- The Arresting Agencies must expunge these records as required by law.
- The Clerk of the Circuit Court must impound these records as required by law.
- The Illinois State Police must expunge these records as required by law.
- The Illinois State Police and the Arresting Agencies must request the return of all arrest or conviction records from any agencies that were previously notified of these records.

- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is DENIED for all cases listed on this order (*If there are other cases, they are listed on a separate order*); **OR**
- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is DENIED for these cases:

The reason your Request is denied for these cases: (check all that apply):

- ☐ Your cases are not legally eligible to be vacated & expunged.
- ☐ Law enforcement's interest in retaining your criminal records is greater than your interest in vacating and expunging your records.
- ☐ Other:

DO NOT fill in these lines. The judge will sign and enter date here.

ENTERED:

Judge: _____ Date: _____

Enter the name and contact information of the person completing the *Order*.

Prepared by: Alexandria Catherine Montgomery-Washington Attorney # (if any): _____

Street Address: 1188 Martin Luther King Jr. Drive, Apartment 1407 Phone: 217-555-0199

City, State, ZIP: Springfield, IL 62703 Email: alexandria.montgomery.washington@example.org